

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff/Counter-Defendant,

vs.

CASE NO.: 2021-CA-4553

LORI SKIPPER,

Defendant/Counter-Plaintiff.

_____ /

PLAINTIFF'S MOTION TO DISMISS COUNTERCLAIMS

Pursuant to Florida Rule of Civil Procedure 1.140(b), Colonial Manor MHC Holdings, LLC ("Plaintiff" or "Colonial Manor") moves to dismiss Defendant Lori Skipper's ("Defendant") Counterclaims. In support, Colonial Manor states as follows:

Background

1. On November 4, 2021, Colonial Manor commenced this suit by filing its Complaint in the Twelfth Judicial Circuit. Colonial Manor's Complaint alleges three counts based on Defendant's breach of fiduciary duty and breach of contract. Colonial Manor's Complaint also seeks declaratory and injunctive relief.

2. Colonial Manor filed suit against Defendant following Defendant's destruction of Colonial Manor's company property and use of confidential resident information in violation of Defendant's Employment Agreement with Colonial Manor. Defendant intentionally and materially breached her Employment Agreement with Colonial Manor and has used her knowledge of Colonial Manor's confidential business information to Colonial Manor's detriment.

Defendant's actions have also circumvented and interfered with Colonial Manor's business relationships and relationships with its tenants.

3. On November 23, 2021, Defendant filed an Answer to Colonial Manor's Complaint wherein she admitted to destroying Colonial Manor's company property. *Answer*, ¶ 17.

4. In addition to her Answer, Defendant filed a Counterclaim which appears to allege three-counts: (1) gender discrimination pursuant to Florida Statute section 760.07; (2) Colonial Manor's Complaint contains false statements pursuant to Florida Statute section 837.06; and (3) Colonial Manor has violated Florida Statute section 723.054.

5. Defendant's Counterclaim must be dismissed because the claims are defectively pleaded, fail to state a cause of action, and Defendant failed to exhaust her administrative remedies.

Argument

I. Standard of Review

"Whether a complaint should be dismissed is a question of law." *City of Gainesville v. State of Fla, Dep't of Transp.*, 778 So. 2d 519, 522 (Fla. 1st DCA 2001). "A motion to dismiss for failure to state a cause of action admits all well pleaded facts as true, as well as reasonable inferences that may arise from those facts." *Griffis v. Bridle Oaks Estate, LLC*, No. 5D20-2682, 2021 WL 4341305, *1 (Fla. 5th DCA Sept. 24, 2021) (*citing Palumbo v. Moore*, 777 So. 2d 1177, 1178 (Fla. 5th DCA 2001)); *Nat Weaver, Inc. v. Fencl*, 701 So. 2d 121, 121 (Fla. 5th DCA 1997). "Those allegations are then reviewed in light of the applicable substantive law to determine the existence of a cause of action." *Blue Supply Corp. v. Novos Electro Mech., Inc.*, 990 So. 2d 1157, 1159 (Fla. 3d DCA 2008) (*citing Peeler v. Indep. Life & Accident Ins. Co.*, 206 So. 2d 34, 36 (Fla. 3d DCA 1967)).

Similarly, in determining a motion to dismiss for lack of standing, the court must confine its review to the four corners of the complaint, draw all inferences in favor of the pleader, and accept all well-pled allegations in the complaint as true. *Llano Fin. Grp., LLC v. Yespy*, 228 So. 3d 108, 111 (Fla. 4th DCA 2017). “Mere legal conclusions are not sufficient unless substantiated by allegations of ultimate fact. Every fact essential to the cause of action must be stated distinctively, definitely and clearly.” *Loving v. Viecelli*, 164 So. 2d 560, 561 (Fla. 3d DCA 1964) (citing *Ocala Loan Co. v. Smith*, 155 So. 2d 711, 716 (Fla. 1st DCA 1963)).

II. Each of Defendant’s Counterclaims are Deficient and Fail to Comply with the Florida Rules of Civil Procedure

Rule 1.110 of the Florida Rules of Civil Procedure requires Defendant to plead “a short and plain statement of the ultimate facts showing that the pleader is entitled to relief.” Fla. R. Civ. P. 1.110(b)(2). Defendant’s Counterclaims fail to comply with this pleading requirement because they impermissibly combine pleadings and lack the allegations of ultimate fact needed to support the claims for relief. Rather, Defendant has used her claims as an opportunity to air her general grievances and otherwise make broad assertions and legal conclusions.

As a whole, Defendant’s Counterclaims are also deficient in that she failed to properly name the relevant parties pursuant to Florida Rules of Civil Procedure. Defendant has named Colonial Manor MHC Holdings, Inc., et al. as the “Counter Complaint Defendant.” *Counterclaim*, ¶ 1. It is unclear who Defendant intends to name as a party to the Counterclaim as no other individuals are named within the Counterclaim nor does the case caption enumerate the Counter-Defendants beyond Colonial Manor MHC Holdings, Inc. Instead, Defendant uses “et al.” as a catch-all phrase for any and all individuals who may be related to this case. This is improper. *See* Fla. R. Civ. P. 1.00(c)(1); 1.170(h).

In addition, the one named Counter-Defendant – Colonial Manor MHC Holdings, Inc. – is not a legal entity. The Plaintiff in the underlying Complaint is Colonial Manor MHC Holdings, LLC; as a result, it is assumed that Defendant attempted to name Colonial Manor MHC Holdings, LLC in her Counterclaim. However, as presently alleged, Colonial Manor MHC Holdings, Inc. is not an existing entity and, as such, Defendant has failed to state a claim against any legal entities. Therefore, each of Defendant’s Counterclaims must be dismissed.

III. Count I: Discriminatory Actions Based on Gender

Defendant’s individual counts are also deficient and provide a further basis for dismissal. Defendant’s Counterclaim Count I appears to allege that Defendant suffered from gender discrimination during her employment with Colonial Manor. In particular, Defendant makes the broad assertion that she was an employee of Colonial Manor and is being subjected to gender discrimination pursuant to Florida Statute section 760.07 now that Colonial Manor has filed suit against her. *Counterclaim*, ¶¶ 2-7.

a. Failure to Satisfy Conditions Precedent

As an initial matter, Defendant has failed to satisfy the conditions precedent to bring this claim. Florida Statute section 760.11 requires that “[a]ny person aggrieved by a violation of ss. 760.01-760.10” file a complaint with the Florida Commission on Human Relations (“FCHR”) prior to filing suit. § 760.11(1), Fla. Stat. (2021). Defendant has failed to do so and that is why she does not allege that all conditions precedent to bringing her claims have been satisfied. *Compare Complaint*, ¶ 27.

b. Failure to State a Claim

Moreover, even if Defendant had properly filed a complaint with the FCHR (which Colonial Manor expressly denies), Defendant has failed to state a claim upon which relief can be

granted. To state a claim pursuant to Chapter 760, Defendant must allege that (1) she was a member of a protected class; (2) she was qualified for her position; (3) she was subjected to an adverse employment action; and (4) she was treated less favorably than similarly situated individuals outside her protected class. *Valenzuela v. GlobeGround N. Am., LLC*, 18 So. 3d 17, 22 (Fla. 3d DCA 2009).

It is not disputed that Defendant is a member of a protected class; however, Defendant has failed to allege any discriminatory action that was taken against her as an employee of Colonial Manor. Rather, Defendant's Counterclaim simply points to the fact that Colonial Manor has filed suit as the alleged discriminatory action even though Defendant is no longer an employee of Colonial Manor. *Counterclaim*, ¶ 2. Additionally, Defendant concedes that she left her position with Colonial Manor to accept a position with a different facility. *Counterclaim*, ¶ 4. As a result, Defendant has failed to allege any facts that state a claim for employment discrimination. Count I must accordingly be dismissed.

IV. Count II: Making False Statements

In Count II, Defendant alleges that Colonial Manor's Complaint contains false and misleading statements in violation of Florida Statute section 837.06. In sum, Defendant's second count attempts to raise criminal issues in a civil action. Section 837.06 is a criminal statute providing that whoever knowingly makes a false statement in writing with the intent to mislead a public servant is guilty of a second-degree misdemeanor. § 837.06, Fla. Stat. (2021). However, no private right of action exists for Defendant under this criminal statute. "Criminal statutes provide no basis for civil liability." *Kerr v. Wells Fargo Bank*, No. 2:15-cv-327-FtM-38MRM, 2015 WL 8042272, *4 (M.D. Fla. Dec. 7, 2015) (citing *Otto v. Hillsborough Cnty., Fla.*, No. 8:12-cv-1515, 2013 WL 2456095, *4 (M.D. Fla. June 6, 2013)). As a result, Defendant lacks standing

to enforce this penal statute and, “[o]nly a federal or state prosecutor can file a criminal charge against a person or entity.” *Id.* Therefore, Count II must be dismissed with prejudice.

V. Count III: Mobile Home Park Tenancies

a. Failure to State a Claim

Lastly, in Count III, Defendant appears to allege that Colonial Manor has violated Florida Statute section 723.054. Section 723.054 prohibits any bylaw, rental agreement, regulation, or rule pertaining to a mobile home park to infringe upon certain rights of mobile home owners or tenants to peaceably assemble or canvass. *See* § 723.054, Fla. Stat. (2021). Defendant has failed to allege any facts that indicate Colonial Manor has implemented any bylaw, rental agreement, regulation, or rule that infringes upon any rights of its mobile home owners or tenants. In support of her allegations Defendant refers to an “Exhibit 1,” but fails to attach any such documents. *See Counterclaim*, ¶ 16; *see also* Fla. R. Civ. P. 1.130. However, even if this purported exhibit was attached, Defendant has still failed to state a claim because she failed to allege any facts that indicate the mobile home owners and tenants – including Defendant herself – are prohibited from assembling, communicating, or canvassing at Colonial Manor.

b. Defense Asserted as a Counterclaim

Lastly, in connection with Defendant’s third count, Defendant improperly attempts to assert a defense to Colonial Manor’s Complaint as a counterclaim. *Counterclaim*, ¶ 18. Defendant alleges in her Counterclaim that she has been retaliated against pursuant to Florida Statute section 723.0615 and seeks damages based on these alleged retaliatory actions. *Id.* This is improper. Section 723.0615 is a defense available to a home owner in any action for possession, not a basis for a separate claim. As a result, Defendant’s Count III is wholly improper and impermissible and must be dismissed.

Conclusion

Defendant's Counterclaims are not sufficiently pleaded for a multitude of reasons and, as a result, must be dismissed. Defendant's Counterclaims are defective in failing to name the relevant parties, failing to state any facts upon which relief may be granted, improperly asserting defenses as counterclaims, and attempting to assert criminal statutes and penalties where no private right of action exists. Therefore, Colonial Manor respectfully requests that this Court dismiss Defendant's Counterclaims in full.

WHEREFORE, Plaintiff/Counter-Defendant Colonial Manor, by and through its undersigned counsel, moves this Court to dismiss Defendant/Counter-Plaintiff Lori Skipper's Counterclaims and grant any other such relief as may be deemed appropriate by this Court.

Respectfully submitted this 13th day of December, 2021.

/s/ Jordann Wilhelm

JORDANN WILHELM (FBN: 1003182)

E-mail: jwilhelm@radeylaw.com

Secondary E-mail: sschulz@radeylaw.com

CHRISTOPHER B. LUNNY (FBN: 0008982)

E-mail: clunny@radeylaw.com

Secondary E-mail: sschulz@radeylaw.com

Radey Law Firm

301 South Bronough Street

Suite 200

Tallahassee, Florida 32301

Telephone: (850) 425-6654

Facsimile: (850) 425-6694

Counsel for Plaintiff,

Colonial Manor MHC Holdings, LLC

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been served by electronic mail to Lori Skipper at lorilyn1985@gmail.com, and regular mail to 900 9th Ave. East, Palmetto, FL 34221 this 13th day of December 2021.

/s/ Jordann Wilhelm

JORDANN WILHELM